**LOTERÍA LAS ARENAS**

Administración Oficial nº 336 · C.C. Arenas de Barcelona
Gran Via de les Corts Catalanes, 373-385 · 08015 Barcelona · 934 247 349

# Private agreement for a shared lottery ticket (décimo)

Agreement for joint participation, safekeeping and distribution of prizes between private individuals

At _____ (town/city), on this _____ day of _____, 20__, **before the draw is held**, the persons signing at the end (hereinafter, "the participants") agree to share the ticket or tickets identified below, in accordance with the following stipulations.

## 1 · IDENTIFICATION OF THE TICKET

| NUMBER | SERIES | FRACTION | DRAW | DRAW DATE |
|---|---|---|---|---|
| | | | | |

Lottery outlet where purchased: _____

Total price of the ticket: _____ € · No. of shared tickets: _____

## 2 · PARTICIPANTS AND PARTICIPATION SHARES

Each participant contributes the amount indicated and is entitled to the resulting percentage of the total. The sum of the percentages must equal 100%.

| FULL NAME | DNI / NIE (ID) | CONTRIBUTION (€) | SHARE (%) |
|---|---|---|---|
| | | | |
| | | | |
| | | | |
| | | | |
| | | | |
| **TOTAL** | | | **100 %** |

## 3 · STIPULATIONS

1. **Purpose.** The participants declare that they jointly play the ticket identified in clause 1, of which they are co-owners in proportion to the shares set out in clause 2. This agreement is made under the freedom of contract between the parties (arts. 1254 and 1255 of the Spanish Civil Code) and gives rise to a co-ownership of the ticket (arts. 392 et seq. of the Spanish Civil Code).
2. **Safekeeping.** The ticket shall be held in the safekeeping of _____ (the "custodian"), who undertakes to keep it with due care and to produce it to any participant who so requests. As it is a bearer instrument, safekeeping does not alter the shares: the ticket belongs to all the participants in the agreed proportion, regardless of who holds it.
3. **Collection of the prize.** If the ticket wins a prize, collection shall be carried out on behalf of all the participants jointly. Where the amount requires identification before the banking institution or the

competent authority, **all the participants shall be recorded as joint owners of the prize**, so that each one is allocated their share and taxed on it.

4. **Distribution.** The prize, once any legally applicable tax withholdings have been made, shall be distributed among the participants in strict proportion to their shares, within a maximum period of _____ days from collection.
5. **Costs and taxes.** Each participant bears the proportionate share of the costs and taxes arising from the prize, including the withholding on lottery prizes where applicable. The declaration of joint ownership is intended to ensure that the distribution is not treated as a gift between the participants.
6. **Loss, damage or theft.** The custodian shall immediately notify the other participants of any loss, damage or theft of the ticket, and the participants shall cooperate in the steps necessary before the lottery outlet and, where appropriate, the authorities.
7. **Term.** This agreement relates exclusively to the draw identified in clause 1 and shall cease to have effect once the prize has been distributed or the draw has been held without a prize.
8. **Data protection.** The personal data collected shall be used solely for the administration of this agreement and of any prize, and shall not be disclosed to third parties save where required by law.
9. **Governing law and dispute resolution.** This agreement is governed by the Spanish Civil Code. The participants shall endeavour to resolve any dispute amicably and, failing that, submit to the courts and tribunals having jurisdiction in accordance with the law.

## 4 · SIGNATURES OF THE PARTICIPANTS

By signing this document, each participant declares that they are aware of and accept its contents. It is recommended that each person keep a signed copy.

| FULL NAME | DNI / NIE (ID) | SIGNATURE |
|---|---|---|
| | | |
| | | |
| | | |
| | | |
| | | |

**Notice.** This is a template for general guidance and does not constitute legal or tax advice. For prizes of a substantial amount or particular circumstances, it is advisable to consult a lawyer or adviser. Document provided free of charge by **Lotería Las Arenas** · Administración Oficial nº 336 · Play responsibly · +18 · www.juegoseguro.es